

1.

| CASE #      | CASE NAME                                                                                                   | HEARING NAME                    |
|-------------|-------------------------------------------------------------------------------------------------------------|---------------------------------|
| CVRI2403057 | LYNSIE B. ASHTON,<br>SPECIAL<br>ADMINISTRATOR FOR<br>DECEASED PLAINTIFF<br>PATRICIA L. NISSEN. vs<br>NISSEN | MOTION TO SET ASIDE<br>JUDGMENT |

**Tentative Ruling:** The Court continues the hearing on this Motion to August 21, 2026.

2.

| CASE #      | CASE NAME                          | HEARING NAME                                                                             |
|-------------|------------------------------------|------------------------------------------------------------------------------------------|
| CVRI2506266 | MCCOLLUM vs COUNTY<br>OF RIVERSIDE | MOTION TO QUASH OR MODIFY<br>DEPOSITION SUBPOENA FOR<br>PRODUCTION OF MEDICAL<br>RECORDS |

**Tentative Ruling:**

### **Factual/Procedural Context**

Plaintiff Michael McCollum ("Plaintiff") brings this disability discrimination action against his former employer, Defendant County of Riverside ("County").

In the Complaint, Plaintiff alleges that he injured his lower back and left leg while he was on duty in November 2020. Accordingly, Plaintiff was placed on disability medical leave from November 2020 through October 2021, when he returned to work with modified duties. After six months, Plaintiff alleges that County informed him it could no longer accommodate his restrictions and placed him on another medical leave of absence. Plaintiff alleges that on November 1, 2022, his physician cleared him to return to work with modified work duties. However, Plaintiff alleges that County informed him he could either take a demotion, retire, or quit. Accordingly, on November 2, 2022, Plaintiff was constructively discharged and forced to retire at 44 years old.

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On October 31, 2025, Plaintiff filed a Complaint against County, asserting causes of action for: (1) Disability Discrimination (Govt. Code § 12940, et seq.); (2) Failure to Accommodate (Govt. Code § 12940(m)); (3) Failure to Engage in the Interactive Process (Govt. Code § 12940(n)) and (4) Retaliation (Govt. Code § 12940(h).)

On May 27, 2026, County issued two deposition subpoenas for production of medical records to Plaintiff's medical providers, Community Medical Group of Riverside